VENDOR SERVICE CONTRACT

Fairmont Data Center | Cincinnati, OH

Owner	Fairmont Data Center Owner LLC
Contractor	GreenEdge Landscaping
Services	landscape maintenance
Property	Fairmont Data Center
Effective Date	September 8, 2026

1. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform landscape maintenance at Fairmont Data Center in accordance with the specifications attached hereto. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

2. Term and Termination. This Contract commences on the Effective Date for a term of 18 months and may be terminated by either party on thirty days' written notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

3. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

4. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH. Time is of the essence with respect to each and every provision of this instrument.

5. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH.

6. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

7. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only